

Data Protection Education

Trust: Unity Western Hub

Highgate & King's Oak

DPO: Lindsey Smith/James England

Date of Visit: 6th October 2021

1. Purpose of the visits

The visit was conducted to find the way data protection has been handled within the schools previously known as KWEST Trust, which have recently joined Unity Trust. These were to ascertain the current situation within these schools compared to those already part of Unity and to build relationships moving forward with supporting the schools to identify priority areas to work on to be able to best demonstrate commitment to compliance to the GDPR.

2. Scope of the visits

Discussion during the meetings covered the following areas:

- Previous staff training
- How breaches and data rights requests have been recorded/reported
- Method of communication with parents
- Method of recording safeguarding concerns
- Physical security of data/site
- IT Security
- Policies
- Data audit walks conducted in-house

3. Schools of the "Bridges Federation"

James England and Lindsey Smith met with both Heads of Schools for the "Federation" Louise Arrowsmith and Suzie Hayes.

This morning session was used to discuss all three schools as similar processes were in use and both Heads would have answers and relevant information across all schools.

GDPR training was previously provided by Brigantia using KnowBe4 training, where videos were emailed to staff regularly throughout the year. It was reported that these were well-received (and that staff were receptive to training) but there are no records of who viewed what and when.

Unity Trust policies and procedures were being introduced but leadership and staff are not familiar with contents. Both Heads indicated that they would welcome data protection champion training.

Breaches are logged in the school manually, in "the red book". It was reported that there hadn't been any data subject access requests.

Generic parental communications are sent via the My Child at School app, via Bromcom. It was noted that Bromcom will not be used as the MIS at some point in the future as the schools are integrated into Unity. DPE has a default data protection impact assessment for MIS data migration, as well as additional guidance material if needed.

Additional tools that allow some parental access/communication include Tapestry and Class Dojo. It was also reported that any unique parental communications are sent/received via a single school office account, which are then logged in CPOMS. Whilst this reduces risk of data sent and shared via individual staff accounts, it potentially increases the risk of different data categories being accessed via a single account.

CPOMS also holds all safeguarding records - previous paper records have been scanned, logged and existing paper records destroyed.

Health Care Plans are held in classrooms, out of reach of students, in colour-coded folders. It's not clear how the information is used and updates recorded centrally. Whilst ensuring important data is accessible, it's not clear whether the "out-of-reach" control is always utilized and sufficient for this category of data. Access control (secure filing) would be preferred.

There is no secured printing used.

a. Wimbotsham and Stow Academy

A limited walkaround took place incorporating offices, staff room and corridors. There was no evidence of visible personal data on display.

There was a shredder in use in the office, however, it was reported that confidential waste bags were occasionally used, collected and moved from one school to another for collection and destruction.

No red "breach" book was available at this school.

A legacy CCTV system exists, but is not working.

b. Magdalen Academy

A limited walkaround took place incorporating offices, staff room and corridors. There was no evidence of visible personal data on display.

c. St Germans Academy

A limited walkaround took place incorporating offices, staff room and corridors. There was no evidence of visible personal data on display. However, in the staffroom, folders under the control of the chair of governors had been left unsecured on a chair, undoubtedly containing data not for circulation. To this end a lockable cupboard had been provided, but this was unsecured with the key left in.



Confidential shredding bags were unsecured in the office. One sealed, one open. Though located in the office, it is possible that unauthorised staff may have access to the contents of the bags, though not having authorisation to the data they contain. It is recommended that staff are responsible for shredding when data is required for destruction - a shredder is available in the school office next to the bags. Alternatively, the bags should be locked in a secure location when unattended.

4. Highgate - summary

Highgate Infants has less than 90 pupils on roll and 18 staff, comprising of 5 teachers, a mixture of TA's, Admin and Premises staff.

GDPR training for staff has been minimal. The Headteacher was keen to implement training as soon as possible as she doesn't remember when staff training last took place.

The Head had no recollection of any formal SARs being requested and therefore was unsure how they would proceed should one be received. Data breaches, similarly, they don't believe any have taken place.

Due to the size of this school, communication with parents is usually face-to-face in the playground at drop off/pick up and therefore correspondence is often physically handed out. We briefly discussed the human error possibility with this form of communication. The school also use "Marvellous Me", a home-to-school communication app.

Highgate use CPOMs for the recording of safeguarding concerns and these are electronically transferred to the next school of the child's education. Most paper files have been scanned into CPOMs and shredded, but it is believed there is still a year groups' worth of paper files. A record is kept of which school the files are transferred to.

The school is located on the corner of a main road, with the playground at the front of the building, having locked gates and key fob entry. The receptionist requested to see my DBS upon arrival, of which she noted the disclosure reference number on a notepad. The signing-in process for visitors is a paper system. There is no CCTV. The Deputy Head is also SENDCO & DSL, she has her own office space which remains locked when she is not present. All confidential files are locked in cabinets within this office.

IT systems are old. They currently use Microsoft Office and are soon to move MIS from Bromcom to Pupil Asset.

The school website is in the process of being moved from KWEST to Unity and the Head believes the Unity policies will be transferred over without need for ratification from their Governing Body.

The Headteacher was keen to use the “Making the rounds” tool on the platform as data audit walks have not been carried out and due to the size of the school there’s a very trustworthy atmosphere among the staff force, which we discussed could result in breaches.

5. King’s Oak - summary

Staff training had been undertaken with Brigantia but the Head felt this was some time ago and that all staff require a refresh.

Data breaches were to be logged in a paper book, but there was not any to the Headteachers’ knowledge. They have received a SAR 2 weeks ago and had been in discussion with Andriana regarding the process and timescale. I asked the Head to log this on the platform so we can support her. It is the first formal SAR they have received.

The school uses Tapestry & Seesaw apps to communicate with parents. Any other external email communication is via the Office@ address.

CPOMs is used for safeguarding concerns and these are electronically transferred to the next school of the child’s education. The system has been in place for 3 years and anything previous to CPOMs is in paper format. A record of which school the files are transferred to is kept.

The school is located in a residential street. Access to the main reception is open. The signing in system is electronic and the door into the school from the reception is locked with key fob entry. There is no CCTV on King’s Oak Infants site, however the neighbouring Junior School (connected physically by doors in the assembly hall) have CCTV which the Head believes records footage on the Infants School site (unconfirmed). The Parent Support Advisor, also the DSL, is a member of non-teaching staff with her own office space, lockable cabinets and door. Shredding is kept in a confidential waste bag, locked away, until the shredding disposal company collect.

Currently using Microsoft, they have access to OneDrive but it is not used to its potential, staff still email themselves documents/attachments to access remotely. MIS is soon to be moved from Bromcom to Pupil Asset.

The school website is moving from KWEST to Unity and policies will be adopted with this change. They currently use a cloud-based software called “Intouch”

As the meeting ran past end of the school day, the Head invited to me to tour the site:

- The Infant school is physically joined to the neighbouring Junior school. Currently they share a fire alarm system and boiler.
- External doors to detached classrooms are all key fob entry.
- No personal data visible on walls, displays, desks.
- Forename & Surname on coat pegs – suggest forename with surname initial only.
- All computers were locked or switched off.

Key recommendations

- Knowledge Bank training to orient on the available toolset.
- Workshop (can be delivered online) with data protection leads to emphasise key policy and procedural points
- Following on - data protection leads to conduct and record a "making the rounds" data walk
- Staff training to ensure that any previous training has been retained and to ensure a record of training activity - specifically these modules are recommended:
 - GDPR refresh
 - Subject Access Requests
 - Data Breaches
- Longer-term aims are to ensure that records of processing activity are developed in line with Unity's documentation and to undertake risk assessments to prioritise any areas of risk.

Future visits (Christmas term)

(Possibly 17th November?)

- Great Dunham
- Pott Row
- Churchill Park Complex Needs School
- Greyfriars Academy
- The Short Stay School for Norfolk:
 - The Rosebery School
 - Compass Pott Row